

# Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

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January 22, 2019

Heather Smith, Chief Financial Officer, Carter and Sons

Re: Habitat Restoration Monitoring, Post-Construction Compliance Services

Dear Ms. Smith:

This letter sets out the terms on which Saltmarsh Environmental Partners LLC will carry out habitat restoration monitoring for Carter and Sons. It follows our walk of the restoration area and the as-built drawings, planting plan, and permit conditions your office sent afterward. Signed and returned, it is the agreement between us for this work, and it stands in place of anything either of us said before it. Correspondence and invoices will go to your attention at Carter and Sons unless you tell us otherwise.

I have kept it short. Where it hedges, it hedges because the work does, and I would rather say so now than in a report.

## Scope of Services

The permit conditions require that the restoration area be monitored and that the results be reported to the agency in a form it can check. Our services cover one monitoring event and the report that documents it. Specifically:

- Reconnaissance of the restoration area, with the planted limits verified against the approved plan and permanent photo stations established at fixed bearings so that this year's photographs can be compared with next year's.
- Vegetation monitoring in fixed plots: species composition, areal cover by stratum, and a count of surviving installed stock, recorded plot by plot and tallied against the performance standards named in the permit.
- Hydrologic monitoring: shallow groundwater wells and the staff gauge read on a fixed interval, with inundation observed at the plot locations and referenced to the predicted tide.
- Sediment sampling at the outfall and at the reference location, collected under chain of custody and delivered to the analytical laboratory with holding times documented on the form.

- Mapping of invasive species within the restoration area and a fifty-foot buffer around it, by patch, with areal extent estimated in the field.
- One monitoring report suitable for submission to the permitting agency, with the field data tabulated, the photographs keyed to the stations, and each performance standard addressed on its own terms.

Our services do not include maintenance, replanting, remediation design, negotiation with the agency, appearance at a hearing, or expert testimony. Those are useful things and we do them, but not under this letter and not for this fee.

## **Our Approach**

Plots are located by coordinate and marked so that the same ground is read each visit; a monitoring record whose plots wander is a record of the plots, not of the marsh. Cover is estimated visually by two observers working the same plot and reconciled on the spot rather than averaged afterward. Wells are read with a calibrated meter and the calibration is logged the morning of the reading. Samples are labelled at the point of collection, not at the truck.

The estuary sets the schedule. A field day that falls on the wrong tide or the wrong weather produces data we would have to caveat, and a caveat in a monitoring report is a question the reviewer asks you three years later. We will move a field day sooner than collect something we would not defend. You should expect that to happen at least once, and it is not a delay in any sense that matters to the permit.

We report what was measured, where, and on what date. Where the data support a conclusion we will state it. Where they support a range, we will give the range. We will not tell you the restoration is succeeding because the planting looks well; that is an impression, and the agency is not buying impressions from us.

## **Project Team**

Three people from this office will do the work. William Schwartz runs the field program: the boat, the wells, the gauge, the meters, and the calibration of anything that reads a number. He sets the field days and he moves them, and I back him when he does. James Henderson runs the sampling program and the chain of custody, and he writes the report; he is hard on data that arrive too clean, which is the temperament this work wants. I review every deliverable before it leaves the office and I ask where a total came from before I ask what it means. The transmittal carries my name and the responsibility with it.

## **Fee and Commencement**

Our fee for the services described above is \$118,500, fixed for the scope as written and inclusive of laboratory analysis, boat time, mileage, and reproduction. Work commences on February 1, 2019 and runs approximately three months from commencement through delivery of the monitoring report.

## **Fees and Payment**

We invoice monthly for the portion of the work completed. Invoices are payable within thirty days of receipt. Work outside the scope above will not be started until you have authorized it in writing and we have quoted it in writing; a request in the field is not an authorization, and William Schwartz has instructions to say so politely and keep working on what is in this letter.

## **Term and Termination**

This agreement runs from commencement through delivery of the monitoring report and our written response to one round of agency comments on it. Either party may terminate on ten days' written notice. On termination you pay for work performed and for commitments already made on your behalf, principally laboratory charges for samples in the queue. Field data, photographs, and any samples in our custody at termination are delivered to you.

## **Confidentiality**

The data we collect and the reports we prepare for you are yours, and we hold them in confidence except where a regulatory agency compels disclosure or a court orders it. We ask one thing in return: our reports travel to third parties whole or not at all. A cover figure quoted out of the report loses the qualifications that make it true.

## **Limitation of Liability**

Monitoring is a sample of a place at a time. Conditions between the plots and between the visits are inferred from what the plots and the visits show; they are not measured, and no field program of a size anyone would pay for measures them. Our aggregate liability arising out of this engagement is limited to the amount of our fee. We do not warrant that the restoration will meet its performance standards. We report whether the measurements say it did, which is the only thing we are in a position to warrant and the only thing the agency will credit.

## **Governing Law**

This agreement is governed by the law of the state in which the restoration area lies, without regard to its conflict-of-laws provisions. Before either of us files anything, we will sit down with a mediator we both agree on. In this business most disputes are disputes about what was meant, and those are cheaper to settle in a room.

If the foregoing is acceptable, please sign below and return one copy to my attention; we will countersign and scan it to the project file. If anything in it reads wrong to you, call me and we will fix it before you sign rather than argue about it later. We are glad to be doing this work.

Very truly yours,

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**Angela Flynn**

Managing Principal

Date: January 22, 2019

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**Heather Smith**

Chief Financial Officer, Carter and Sons

Date: January 22, 2019